

February 23, 2012



U.S. Department
of Transportation

East Building, PHH-30
1200 New Jersey Avenue S.E.
Washington, D.C. 20590

**Pipeline and Hazardous
Materials Safety Administration**

DOT-SP 15562

EXPIRATION DATE: July 31, 2012

1. GRANTEE: Crowley Petroleum Distribution, Inc.
Anchorage, AK
2. PURPOSE AND LIMITATION:
 - a. This emergency special permit authorizes the transportation in commerce of propane by cargo only aircraft in packages that exceed the quantity limitation where no other means of transportation is available. This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein. The most recent revision supersedes all previous revisions.
 - b. The safety analyses performed in development of this special permit only considered the hazards and risks associated with transportation in commerce.
 - c. No party status will be granted to this special permit.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 172.101 Hazardous Materials Table Column (9B) in that the maximum quantity is exceeded and § 172.302(c) in that the requirement for marking the portable tanks with the special permit number is waived.
5. BASIS: This emergency special permit is based on the application of Crowley Petroleum Distribution, Inc. dated February 14, 2012, submitted in accordance with § 107.117 and a determination that it is necessary to prevent significant injury to persons or property.

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6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Hazardous Materials Description			
Proper shipping name	Hazard Class/ Division	Identification Number	Packing Group
Petroleum gases, liquefied or Liquefied petroleum gas	2.1	UN1075	N/A
Propane see also Petroleum gases, liquefied	2.1	UN1978	N/A

7. SAFETY CONTROL MEASURES:

- a. PACKAGING - Prescribed packagings are DOT Specification 51 portable tanks.
- b. OPERATIONAL CONTROLS - Transportation is authorized only to Kotzebue, Alaska where no other means of transportation is available.
- c. The authorized air carrier is Lynden Air Cargo of Anchorage, Alaska.
- d. The portable tank must be properly secured in the aircraft to prevent movement during transportation.
- e. The return shipment of depleted tanks by air is authorized.

8. SPECIAL PROVISIONS:

- a. Advance Notice of FAA Civil Aviation Security Regional Dangerous Goods/Cargo Security Coordinator (DG/CS). Notify the regional DG/CS Coordinator in the region where the flight will originate. This notification must be given at least 48 hours in advance of plans to operate under the exemption, unless prior arrangements have been made with the cognizant regional DG/CS Coordinator. The notification will include the point of departure and destination and a loading and departure schedule.

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- b. A current copy of this special permit must be maintained at each facility where the package is offered or reoffered for transportation.
- c. MARKING - The marking requirements of § 172.302(c) are waived.
9. MODES OF TRANSPORTATION AUTHORIZED: Cargo aircraft only.
10. MODAL REQUIREMENTS: A current copy of this special permit must be carried aboard each aircraft used to transport packages covered by this special permit. The shipper must furnish a copy of this special permit to the air carrier before or at the time the shipment is tendered.
11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:
- o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
 - o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
 - o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when this special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU)- "The Hazardous Materials Safety and Security Reauthorization Act of 2005" (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous

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materials transportation law by changing the term "exemption" to "special permit" and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 - Immediate notice of certain hazardous materials incidents, and 171.16 - Detailed hazardous materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:



for Dr. Magdy El-Sibaie
Associate Administrator for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Material Safety Administration, U.S. Department of Transportation, East Building PHH-30, 1200 New Jersey Avenue, Southeast, Washington, D.C. 20590.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at http://hazmat.dot.gov/sp_app/special_permits/spec_perm_index.htm Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: LAVALLE